

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Donaghy	Team: Squad #14	CCRB Case #: 201910363	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 11/29/2019 2:45 AM, Friday, 11/29/2019 3:05 AM, Friday, 11/29/2019 3:15 AM	Location of Incident: § 87(2)(b) in Queens; en route to § 87(2)(b)	18 Mo. SOL 1/13/2022	Precinct: 114		
Date/Time CV Reported Fri, 11/29/2019 12:06 PM	CV Reported At: Precinct	How CV Reported: E-mail	Date/Time Received at CCRB Mon, 12/02/2019 11:07 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Ganesh Persaud	10796	949478	PSA 9
2. POM Andrew Cottone	14988	960398	PSA 9

Officer(s)	Allegation	Investigator Recommendation
A . POM Andrew Cottone	Abuse: At § 87(2)(b) in Queens, Police Officer Andrew Cottone forcibly removed § 87(2)(b) to the hospital.	A . Exonerated
B . POM Ganesh Persaud	Abuse: At § 87(2)(b) in Queens, Police Officer Ganesh Persaud forcibly removed § 87(2)(b) to the hospital.	B . Exonerated
C . POM Ganesh Persaud	Off. Language: En route to § 87(2)(b) Police Officer Ganesh Persaud made remarks based upon the perceived mental disability of § 87(2)(b)	C . Substantiated
D . POM Ganesh Persaud	Discourtesy: En route to § 87(2)(b) Police Officer Ganesh Persaud spoke discourteously to § 87(2)(b)	D . Substantiated
E . POM Ganesh Persaud	Abuse: At § 87(2)(b) Police Officer Ganesh Persaud refused to provide his name to § 87(2)(b)	E . Substantiated
F . POM Ganesh Persaud	Abuse: At § 87(2)(b) Police Officer Ganesh Persaud refused to provide his shield number to § 87(2)(b)	F . Substantiated
G . POM Ganesh Persaud	Off. Language: At § 87(2)(b) Police Officer Ganesh Persaud made remarks based upon the perceived mental disability of § 87(2)(b)	G . Substantiated
H . POM Ganesh Persaud	Off. Language: At § 87(2)(b) Police Officer Ganesh Persaud made remarks to § 87(2)(b) based upon religion.	H . Substantiated
I . POM Ganesh Persaud	Discourtesy: At § 87(2)(b) Police Officer Ganesh Persaud spoke discourteously to § 87(2)(b)	I . Substantiated

Officer(s)	Allegation	Investigator Recommendation
J . POM Ganesh Persaud	Discourtesy: At § 87(2)(b) Police Officer Ganesh Persaud spoke discourteously to § 87(2)(b)	J . Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)

Case Summary

On November 29, 2019, § 87(2)(b) filed the following complaint with Captain Christopher Giambrone of PSA 9 via email on behalf of § 87(2)(b) a patient at § 87(2)(b) § 87(2)(b) did not witness this incident. On December 2, 2019, this complaint was received at the CCRB.

On November 29, 2019, at approximately 2:45 a.m., PO Ganesh Persaud and PO Andrew Cottone responded to a call for medical assistance by § 87(2)(b) at § 87(2)(b) in Queens. § 87(2)(b) refused to accompany EMS workers to an ambulance, and PO Persaud and PO Cottone removed § 87(2)(b) from her apartment (**Allegation A: Abuse of Authority – exonerated**) (**Allegation B: Abuse of Authority – exonerated**). § 87(2)(b) was transported by ambulance to § 87(2)(b) while PO Persaud rode in the ambulance with § 87(2)(b). En route, PO Persaud stated that § 87(2)(b) “is crazy,” and when § 87(2)(b) stated that PO Persaud kicked her, PO Persaud replied with “good” (**Allegation C: Offensive Language – substantiated**) (**Allegation D: Discourtesy – substantiated**).

§ 87(2)(b) arrived at § 87(2)(b) and was brought inside by PO Persaud, PO Cottone, and EMTs. While § 87(2)(b) was being triaged, she asked PO Persaud for his name and shield number, neither of which PO Persaud provided (**Allegation E: Abuse of Authority – substantiated**) (**Allegation F: Abuse of Authority – substantiated**). PO Persaud repeatedly made comments based on his perception of § 87(2)(b) mental disability, and stated that § 87(2)(b) had “problems,” and “deficiencies,” and called her a “sick woman,” “mentally sick,” and a “mental person” (**Allegation G: Offensive language – substantiated**). PO Persaud also made comments regarding § 87(2)(b) religion, and stated that since § 87(2)(b) did not like gay people, Jewish people, or Muslim people, she should watch out as § 87(2)(b) is a “Jewish hospital.” PO Persaud told § 87(2)(b) that if she did not change the way she acted, Jesus will not love her, and stated, “This is a Jewish hospital and she does not like Jews, so she is in the wrong place” (**Allegation H: Offensive language – substantiated**). PO Persaud, in response to a conversation between two EMTs about Black Friday, told § 87(2)(b) that she would make a good bodyguard for a crowded Black Friday sale, and then asked her if she would escort EMTs to a store (**Allegation I: Discourtesy – substantiated**).

After being triaged, § 87(2)(b) was escorted to the psychiatric emergency room in § 87(2)(b). A § 87(2)(b) nurse, § 87(2)(b) approached PO Persaud inside the psychiatric emergency room and asked him to stop “agitating” § 87(2)(b) which PO Persaud refused to do. § 87(2)(b) then asked PO Persaud to leave. PO Persaud walked towards the door to the nursing station, which required a keycard to open, and began to yank on it while stating, “Let me the fuck out of here.” § 87(2)(b) opened the door for PO Persaud, who told PO Cottone that they were “fucking leaving,” and then told § 87(2)(b) “You’re an asshole” and “You’re a fucking idiot” (**Allegation J: Discourtesy – Substantiated**). PO Persaud and PO Cottone then left.

§ 87(2)(g), § 87(4-b)

The CCRB obtained body-worn camera (BWC) footage of this incident from PO Cottone (Board Review 01) (Board Review 02) and from PO Persaud (Board Review 03), the relevant aspects of which are discussed in further detail below.

Findings and Recommendations

Allegation (A) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer Andrew Cottone forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer Ganesh Persaud forcibly removed § 87(2)(b) to the hospital.

It is undisputed that § 87(2)(b) called 911 after having difficulty breathing and requested for emergency responders to come to her apartment. It is undisputed that EMTs, along with PO Persaud and PO Cottone, arrived in response to § 87(2)(b) call for medical assistance. It is undisputed that § 87(2)(b) refused to leave with EMTs voluntarily.

The CCRB obtained EVENT documentation from this incident (Board Review 04). § 87(2)(b) initially called for an ambulance at 2:04 a.m., and EMS arrived on scene at 2:12 a.m., before PO Persaud and PO Cottone. As such, an entry allegation has not been pleaded. Then, during a series of calls from 2:37 a.m. to 2:47 a.m., EMS reported that § 87(2)(b) had threatened EMTs, was refusing to leave, and was cursing at and arguing with EMS. The EVENT Information notes that officers, who the CCRB has identified as PO Persaud and PO Cottone, arrived on scene by this time. At 3:02 a.m., the EVENT information marks § 87(2)(b) as being transported to the hospital.

Both PO Persaud (Board Review 18) and PO Cottone (Board Review 19) stated that they had been to § 87(2)(b) residence several times prior to this incident while responding to reports of § 87(2)(b) experiencing medical distress. PO Persaud and PO Cottone stated that during several of these incidents, § 87(2)(b) acted erratically, and often yelled at, spit at, and attempted to bite first responders. However, on November 29, 2019, neither PO Persaud nor PO Cottone could recall what interactions they had with § 87(2)(b) inside her apartment.

PO Cottone stated that he was on scene in § 87(2)(b) apartment for approximately one hour and that during that time § 87(2)(b) did not wish to leave with EMTs. PO Cottone did not recall who made the determination to remove § 87(2)(b) from her apartment, though he believed it to be an EMT. PO Cottone also stated that § 87(2)(b) attempted to bite an EMT during this incident, though he did not recall if he observed § 87(2)(b) attempting to bite an EMT or if he became aware of it after the fact.

§ 87(2)(b) was unavailable to the investigation (see IAs for contact attempts).

§ 87(2)(b) (Board Review 19), the nurse at § 87(2)(b) who triaged § 87(2)(b) after her arrival at the hospital during this incident, stated that as per the EMTs, § 87(2)(b) report of having an asthma attack required that EMTs bring her to the hospital.

No AIDED was prepared in relation to this incident (see **Allegation J** and **K**).

The CCRB obtained BWC video of this incident from both PO Cottone and PO Persaud. PO Cottone's BWC (Board Review 01) shows PO Cottone and PO Persaud stand with multiple emergency responders inside of what appears to be § 87(2)(b) bedroom. At timecode 1:00 audio can first be heard, and Fire Department personnel ask § 87(2)(b) to voluntarily come with them out of the apartment, stating that they have been inside the apartment for more than 20 minutes. At timecode 1:24, a Fire Department responder attempts to lift § 87(2)(b) towards a wheelchair, and § 87(2)(b) flails and appears to physically resist. Only afterwards do PO Persaud and PO Cottone appear to assist in physically restraining § 87(2)(b) and placing her into a wheelchair. § 87(2)(b) flails her arms, yells, and grabs onto doorways to prevent emergency responders from removing her from her room. At timecode 3:08, PO Cottone appears to place a handcuff onto § 87(2)(b) left hand and connect the handcuff to the wheelchair. § 87(2)(b) is then wheeled out of her apartment and taken to an ambulance.

PO Persaud's BWC video (Board Review 03), also captures the actions that PO Cottone and PO Persaud took in removing § 87(2)(b) from her apartment. At timecode 1:36, PO Cottone grabs § 87(2)(b) left wrist as EMTs and FDNY personnel attempt to restrain § 87(2)(b). At timecode 1:50, PO Persaud assists in placing a strap around § 87(2)(b) body and appears to hold § 87(2)(b) right wrist as she is removed from her apartment.

According to Patrol Guide Procedure No. 216-01 (Board Review 05) officers are to assist ambulance and hospital personnel in every reasonable manner.

§ 87(2)(g)

§ 87(2)(g)

BWC footage shows that PO Persaud and PO Cottone only moved to assist in physically removing § 87(2)(b) after she began to resist attempts by FDNY personnel to remove her to a waiting ambulance. § 87(2)(g)

It is therefore recommended that **Allegation A and Allegation B be exonerated.**

Allegation (C) Offensive Language: En route to § 87(2)(b) Police Officer Ganesh Persaud made remarks based upon the perceived mental disability of § 87(2)(b)

Allegation (D) Abuse of Authority: En route to § 87(2)(b) Police Officer Ganesh Persaud spoke discourteously to § 87(2)(b)

PO Persaud's BWC (Board Review 03) shows that PO Persaud rode in the ambulance with § 87(2)(b) to § 87(2)(b). During this ambulance ride, PO Persaud repeatedly spoke to § 87(2)(b) who was fully restrained on a gurney. At timecode 21:43, in response to series of statements from § 87(2)(b) stating that she hopes that PO Persaud dies, "a hard death, right in the street," PO Persaud states, "I'm trying to keep my composure but you're such a comedian, I'll leave you a tip before we leave." At timecode 23:52, PO Persaud stated, "She is crazy" in regard to § 87(2)(b). At timecode 25:30, PO Persaud repeatedly calls a news program that § 87(2)(b) refers to "Fake news," and when § 87(2)(b) states that PO Persaud kicked her PO Persaud, replies by first stating "Fake news," again, and then stating "Good." PO Persaud then repeatedly tells § 87(2)(b) to "Keep talking."

PO Persaud stated that he did not have any recollection of the ambulance ride from § 87(2)(b) residence to § 87(2)(b) during this incident, and did not recall if it was he or PO Cottone who rode in the ambulance with § 87(2)(b) during this incident. After being presented with BWC footage of the ambulance ride, PO Persaud stated that he did not believe the voice calling § 87(2)(b) "Crazy," was his, but stated that he was not certain. PO Persaud further stated that, though he did reply to § 87(2)(b) statement that he kicked her by stating, "Good," he did not in fact kick § 87(2)(b) during the ambulance ride. PO Persaud stated that he did not know why he said, "Good," and that it may have just been a "spontaneous utterance."

Patrol Guide Procedure No. 203-10 (Board Review 08) prohibits officers from using discourteous or disrespectful remarks regarding another person's disability. It further prohibits officers from engaging in conduct prejudicial to the good order, efficiency, or discipline of the NYPD.

Patrol Guide Procedure No. 200-02 (Board Review 09) states that the department is committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

As shown in the BWC footage, when PO Persaud referred to § 87(2)(b) who was being removed to the hospital for a psychiatric evaluation, as "crazy," § 87(2)(g)

Then, when § 87(2)(b) stated that PO Persaud kicked her, PO Persaud responded, "good." PO Persaud's reply that it was "good" that § 87(2)(b) believed he had kicked her, § 87(2)(g)

It is therefore recommended that **Allegation C and Allegation D be substantiated.**

Allegation (E) Abuse of Authority: Inside of § 87(2)(b) Police Officer Ganesh Persaud refused to provide his name to § 87(2)(b)

Allegation (F) Abuse of Authority: Inside of § 87(2)(b) Police Officer Ganesh Persaud refused to provide his shield number to § 87(2)(b)

“You’re at the appropriate place, they take care of all your problems and solve your deficiencies that you have,” and then states that § 87(2)(b) is going to be taken to the psychiatric unit and that they, “know better” and will determine when § 87(2)(b) can go home. At timecode 32:59 PO Persaud states, “You talk a lot for a sick woman”, and then states that § 87(2)(b) is “mentally sick.” At timecode 34:01 PO Persaud states that § 87(2)(b) does not like gay people, Jewish people, or Muslim people, but that she should “watch out,” because she is in a “Jewish hospital, you gotta be careful what you speak.” At timecode 34:59 PO Persaud states that “Jesus would not love you” in regard to § 87(2)(b) continued use of what PO Persaud considered inappropriate language.

At timecode 36:03 PO Persaud states to § 87(2)(b) that she is “Exhibiting the signs of a mental person.” At timecode 36:31 PO Persaud, in response to a conversation happening between two EMTs next to him, points at § 87(2)(b) and states that she would make a good bodyguard for a crowded Black Friday sale. PO Persaud then asks § 87(2)(b) if she would escort the EMT to a store. When § 87(2)(b) states that she wants to have PO Persaud and PO Cottone arrested for harassment and brutality, PO Persaud states, “Are you sure that’s all, ma’am?” At timecode 37:40, as § 87(2)(b) is being wheeled through the hospital, PO Persaud states, “This is a Jewish hospital and she does not like Jews, so she is in the wrong place. Dare not say that when you come to a hospital.”

During his CCRB interview, PO Persaud was presented with video of each of the above statements and affirmed that, though he did not independently recall making any of them, he did indeed do so.

Patrol Guide Procedure No. 203-10 (Board Review 08) prohibits officers from using discourteous or disrespectful remarks regarding another person’s disability or their religion. It further prohibits officers from engaging in conduct prejudicial to the good order, efficiency, or discipline of the NYPD.

Patrol Guide Procedure No. 200-02 (Board Review 09) states that the department is committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

As evidenced by the BWC footage, PO Persaud repeatedly made § 87(2)(g) statements towards § 87(2)(b) regarding his perception of her mental health and her religious status, § 87(2)(g) § 87(2)(g)

§ 87(2)(g)
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§ 87(2)(g)

It is therefore recommended that Allegations F, G, and H be substantiated.

Allegation (J) Abuse of Authority: Inside of § 87(2)(b) Police Officer Ganesh Persaud spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that after triaging § 87(2)(b) he approached PO Persaud and pulled him aside to engage in a private conversation. § 87(2)(b) told PO Persaud that his comments were agitating § 87(2)(b) and asked him to stop, but PO Persaud replied that § 87(2)(b) “needs to be agitated.” At that point, § 87(2)(b) told PO Persaud that he needed to leave. PO Persaud walked towards the locked door to the nursing station room, and stated to § 87(2)(b) “Let me the fuck out of here.” § 87(2)(b) opened the door for PO Persaud using his keycard and PO Persaud exited into the nursing station room. PO Persaud obtained his firearm and his taser from the nursing station room, where he was required to store the items per hospital procedure, and repeatedly pounded on the glass between the nursing station and the psychiatric

emergency room with his left fist while stating to PO Cottone that they were, “fucking leaving.” Shortly afterwards, from the hallway outside of the psychiatric emergency room, PO Persaud stated to § 87(2)(b) through a patient access door that § 87(2)(b) was an “asshole” and a “fucking idiot.” PO Persaud and PO Cottone then left.

§ 87(2)(b) identified only one individual by name who he stated witnessed this incident, § 87(2)(b) an employee of § 87(2)(b). However, when § 87(2)(b) was contacted by the investigation, she stated that after conversations with her supervision she would not be able to provide a statement related to this incident.

PO Persaud and PO Cottone both stated that they did not recall if PO Persaud stated, “Let me get the fuck out of here,” “We are fucking leaving,” or if PO Persaud called § 87(2)(b) an “asshole” or a “fucking idiot.” PO Persaud, further, did not recall if he or PO Cottone were asked to leave by a hospital employee. However, PO Cottone stated that approximately five to ten minutes after entering the psychiatric emergency room, a hospital employee told him and PO Persaud that they were agitating § 87(2)(b) and that they were no longer needed.

As both PO Persaud and PO Cottone deactivated their BWC before entering the psychiatric emergency room, no BWC of this portion of the incident was recorded.

Patrol Guide Procedure No. 200-02 (Board Review 09) states that the department is committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

§ 87(2)(g)
§ 87(2)(b) account of PO Persaud’s actions during the period that there was corroborating video evidence was entirely consistent with the BWC of this incident, and is further supported by PO Cottone’s recollection that he and PO Persaud were told that they were agitating § 87(2)(b) and were subsequently asked to leave. § 87(2)(g)

It is therefore recommended that **Allegation I** be substantiated.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 12).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 13).
- § 87(2)(b)
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- PO Persaud has been a member-of-service for ten years and this is the first CCRB complaint to which he has been a subject.
- PO Cottone has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this case.
- As of November 11, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in relation to this complaint (Board Review 17).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
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[REDACTED]
[REDACTED]

Squad No.: 14

Investigator: Matthew Donaghy
Signature

Inv. Matthew Donaghy
Print Title & Name

March 15, 2021
Date

Squad Leader: Cassandra Fenkel
Signature

IM Cassandra Fenkel
Print Title & Name

March 19, 2021
Date

Reviewer: _____
Signature

Print Title & Name

Date